

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RODNEY AGNEW,

Plaintiff,

- against -

THE CITY OF NEW YORK, BRIAN CHICHOTEY
and SCOTT FERRAN,

Defendants.
-----X

Index No.

Plaintiff designates
Kings County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
863 St. John's Place (1R)
Brooklyn, NY 11210

County of Kings

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 19, 2017

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
RODNEY AGNEW
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
BRIAN CHICHOTEY, c/o 77th Precinct, Brooklyn, New York
SCOTT FERRAN, c/o 77th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RODNEY AGNEW,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, BRIAN CHICHOTEY
and SCOTT FERRAN,

Defendants.

-----X

Plaintiff, **RODNEY AGNEW**, complaining of the defendants,
by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth
and alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned, and on
May 31, 2016, the plaintiff, **RODNEY AGNEW**, was and still is a
resident of the County of Kings, City and State of New York.

2. That, at all times hereinafter mentioned, and on
May 31, 2016, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
May 31, 2016, the defendant, **BRIAN CHICHOTEY**, (hereinafter
referred to as "**CHICHOTEY**"), was and still is a resident of the
City and State of New York.

4. That, at all times hereinafter mentioned, and on May 31, 2016, the defendant, **SCOTT FERRAN**, (hereinafter referred to as "**FERRAN**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **RODNEY AGNEW**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on August 4, 2016 and May 11, 2017, respectively, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **RODNEY AGNEW**, testified at an oral examination pursuant to the General Municipal Law on June 16, 2017; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That, on May 31, 2016, the plaintiff, **RODNEY AGNEW**, was on the corner of Sterling Place and St. John's Place in the County of Kings, City and State of New York.

7. That, he was walking and talking with an acquaintance who he had not seen for many years.

8. That, thereafter an unidentified individual chased the plaintiff, **RODNEY AGNEW**, down the block grabbed his waist and tackled the plaintiff throwing him against the fence.

9. That, the plaintiff, **RODNEY AGNEW**, banged his head,

face and cheek against a gate while he was being beaten by other individuals.

10. That, these individuals thereafter identified themselves as police officers, and/or other agents, servants, and/or employees of the defendant and the defendants herein.

11. That, the plaintiff, **RODNEY AGNEW**, was handcuffed while forced to lie on the ground.

12. That, the plaintiff, **RODNEY AGNEW**, was thereafter caused to be "pat down" by the defendants, their agents, servants, and/or employees herein.

13. That, the aforementioned police officers, and/or other agents, servants, and/or employees of the defendant and the defendants had pulled down the pants and shorts of the plaintiff, **RODNEY AGNEW**, and thereafter the plaintiff, **RODNEY AGNEW**, was exposed in public.

14. That, the plaintiff, **RODNEY AGNEW**, was caused to be strip-searched and groped by the aforementioned police officers, and other agents, servants, and/or employees of the defendant and/or the defendants herein.

15. That, the plaintiff, **RODNEY AGNEW**, was not told of any charges that were placed against him by the defendant and/or the defendants herein.

16. That, the plaintiff, **RODNEY AGNEW**, was taken to the 77th Precinct by the defendants, their agents, servants, and/or

employees and were threatened by them while he was in process of being taken to the aforementioned police precinct.

17. That, the plaintiff, **RODNEY AGNEW**, was placed in a cell and was strip-searched naked as well as being attacked by the defendants, their agents, servants and/or other employees herein.

18. That, the plaintiff, **RODNEY AGNEW**, was taken to Central Booking by the defendants, their agents, servants, and/or other employees and had remained there for a long and unreasonable period of time before he was seen by a judge.

19. That, the plaintiff, **RODNEY AGNEW**, was forced to appear in criminal court on several occasions, for charges against him which had no basis and were done so without probable cause.

20. All charges against the plaintiff, **RODNEY AGNEW** were ultimately dismissed on March 31, 2017.

21. That, on May 31, 2016, the plaintiff, **RODNEY AGNEW**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **RODNEY AGNEW**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place on Rogers Avenue between Sterling Place and St. John's Place, Brooklyn, in the County of Kings, City and State of New York and thereafter continuing in 127 Utica Avenue, Brooklyn, in the County of Kings, City and State of New York, and other locations wherein the

plaintiff, **RODNEY AGNEW** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on May 31, 2016, and for sometime prior thereto, defendant, **CHICHOTEY**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on May 31, 2016, and for sometime prior thereto, defendant, **FERRAN**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, the aforementioned assault and battery of the plaintiff, **RODNEY AGNEW**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

27. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

30. That, the plaintiff, **RODNEY AGNEW** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 29 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were

employed by the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **CHICHOTEY** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **FERRAN** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **CHICHOTEY**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **FERRAN**, who was employed by the defendant, **THE CITY**.

37. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

38. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

39. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

40. That the plaintiff, **RODNEY AGNEW**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 39 with the same force and effect as if hereinafter more fully set forth at length herein.

41. That, on May 31, 2016, the plaintiff, **RODNEY AGNEW**, was caused to be falsely arrested and falsely imprisoned without probable cause.

42. That, the plaintiff, **RODNEY AGNEW**, was arrested without an arrest warrant.

43. That, the false arrest/false imprisonment took place on Rogers Avenue between Sterling Place and St. John's Place, Brooklyn, in the County of Kings, City and State of New York and thereafter continuing in 127 Utica Avenue, Brooklyn, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **RODNEY AGNEW** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

44. That, the aforementioned false arrest and false imprisonment of the plaintiff, **RODNEY AGNEW** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **RODNEY AGNEW** , was carried out by defendant, **CHICHOTEY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **RODNEY AGNEW** , was carried out by defendant, **FERRAN** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

47. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW** , was injured; was rendered sick, sore, lame and

disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

48. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

49. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

50. The plaintiff, **RODNEY AGNEW** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 49, with the same force and effect as if hereinafter more fully set forth at length herein.

51. That, the aforementioned false arrest and false imprisonment of the plaintiff, **RODNEY AGNEW** , was caused due to a malicious prosecution of the plaintiff, **RODNEY AGNEW** , without cause, without reasonable cause, and without color of the law.

52. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a

proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **RODNEY AGNEW** , was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

53. That, upon information and belief, all criminal charges against the plaintiff, **RODNEY AGNEW**, were ultimately dismissed on March 31, 2017, in the County of Kings, City and State of New York, before Judge J. Hecht under docket number 2016KN032576.

54. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW** , was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

55. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

56. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

57. The plaintiff, **RODNEY AGNEW** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 56, with the same force and effect as if hereinafter more fully set forth at length herein.

58. That the plaintiff, **RODNEY AGNEW** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

59. That at all times hereinafter mentioned, the defendant, **CHICHOTEY** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

60. That at all times hereinafter mentioned, the defendant, **FERRAN** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of

the defendant, **THE CITY**.

61. Defendant, **CHICHOTEY**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **CHICHOTEY** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

62. Defendant, **FERRAN**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **FERRAN** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

63. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **RODNEY AGNEW** of the following rights, privileges and immunities secured to him by the Constitution of the United States

and of the State of New York: The right of plaintiff, **RODNEY AGNEW** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **RODNEY AGNEW** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **RODNEY AGNEW** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

64. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

65. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

66. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

67. That the deprivation of plaintiff, **RODNEY AGNEW's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

68. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

69. That the detaining of plaintiff, **RODNEY AGNEW** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

70. That the deprivation of plaintiff, **RODNEY AGNEW's** Constitutional rights was the result of the defendant, **CHICHOTEY's** arrest of the plaintiff **RODNEY AGNEW** without probable cause.

71. That the deprivation of plaintiff, **RODNEY AGNEW's** Constitutional rights was the result of the defendant, **FERRAN's** arrest of the plaintiff **RODNEY AGNEW** without probable cause.

72. That the deprivation of plaintiff **RODNEY AGNEW's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

73. That the deprivation of plaintiff, **RODNEY AGNEW's** Constitutional rights was the result of the defendant, **CHICHOTEY's** use of excessive force.

74. That the deprivation of plaintiff, **RODNEY AGNEW's** Constitutional rights was the result of the defendant, **FERRAN's** use of excessive force.

75. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the

Constitutional rights of plaintiff, **RODNEY AGNEW** .

76. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious as well as prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **RODNEY AGNEW** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

77. That, by reason of the foregoing, the plaintiff **RODNEY AGNEW** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

78. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

79. That, by reason of the foregoing, the plaintiff, **RODNEY AGNEW**, has sustained damages in an amount in excess of

the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **RODNEY AGNEW** , demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
July 19, 2017

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
RODNEY AGNEW
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEYS VERIFICATION

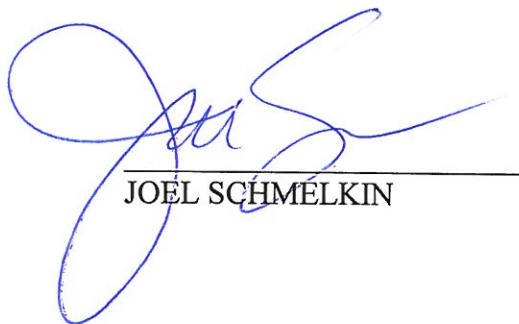
JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York

July 19, 2017



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RODNEY AGNEW,

Plaintiff,

-against-

THE CITY OF NEW YORK, BRIAN CHICHOTEY,
and SCOTT FERRAN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Rodney Agnew

Office and Post Office Address, Telephone

30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: July 19, 2017

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

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Office and Post Office Address, Telephone